

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Team # 1	CCRB Case #: 201402024	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 02/23/2014 4:08 AM	Location of Incident: 315 West 57th Street	18 Mo. SOL 8/23/2015	Precinct: 18
Date/Time CV Reported Tue, 02/25/2014 1:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/28/2014 12:35 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An Officer			Unknown
2. Officers			Unknown
3. SGT Kenneth Monahan	05088	927220	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Maris Garcia	09729	949005	MTN PCT
2. POF Chastity Caban	17337	944672	MTN PCT
3. POM Christia Matthews	31373	922723	MTN PCT
4. POM David Deblasio	22841	952646	MTN PCT
5. POM Kenneth Farrell	11072	943220	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers threatened individuals with the use of force.	A . Victim Unidentified
B . Officers	Force: Officers used physical force against individuals.	B . Victim Unidentified
C . SGT Kenneth Monahan	Discourtesy: Sgt. Kenneth Monahan spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . An Officer	Abuse: An officer damaged § 87(2)(b)'s property.	D . Officer(s) Unidentified

Case Summary

On February 23, 2014, at approximately 4:08 a.m., § 87(2)(b) § 87(2)(b), was double parked in front of 315 West 57th Street in Manhattan. § 87(2)(b) was waiting for a client who was at Providence nightclub located at 311 West 57th Street when a fight broke out. § 87(2)(b) saw two unidentified officers pull out their asps, and one officer struck a tree with his asp (**Allegation A**). § 87(2)(b) saw unidentified male officers push some unidentified civilians exiting the nightclub (**Allegation B**). Sgt. Kenneth Monahan of the 18th Precinct allegedly said, “Get this car the fuck out of here (**Allegation C**).” A few minutes later, when § 87(2)(b) had not moved his vehicle, he heard breaking glass and saw his windshield was cracked. He believed an unidentified officer holding an asp had struck his windshield (**Allegation D**).

Mediation, Notice of Claim, Criminal Histories

This case was not mediation eligible. § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 25, 2014 with regard to the incident. (encl. Q13). § 87(2)(b) [§ 86(1)(2)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A2)
- Sgt. Kenneth Monahan has been a member of the service for fourteen years and there are no substantiated CCRB allegations against him. (encl. A1).

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Monahan acknowledged telling the drivers of the row of cars in front of the fight to move, and that the first civilian argued with him. § 87(2)(g)

Because § 87(2)(b) could not describe the officer who allegedly struck a tree with his asp and the officers who allegedly pushed civilians exiting the club, and the alleged victims were unavailable, **Allegation A** and **Allegation B** are being pleaded against **Officers**.

§ 87(2)(g)

§ 87(2)(b) also did not see anyone strike his windshield. § 87(2)(g)

There were three officers standing near his vehicle when he noticed the crack, and he saw one officer holding an asp. He could not describe these officers beyond that they were white males. § 87(2)(b) the security guard, did not see any officers holding or using an asp. Because a 10-13 was called, every officer in the vicinity needed to respond. By all civilian and officer accounts, there were numerous officers who did not respond over the radio, leaving open the possibility that there were numerous undocumented officers at the scene from a variety of commands, in addition to the 18th Precinct, 20th Precinct, and the Central Park Precinct, which all went over the radio, and units such as the Task Force, Impact, and K-9 units that officers interviewed saw at the scene. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

Force: Pepper spray Although § 87(2)(b) thought he saw an officer across the street pull out pepper spray and spray it, he did not see anyone hit with the pepper spray and § 87(2)(b) the security guard involved in breaking up the fight, did not see any officers use pepper spray.

§ 87(2)(g)

Allegation A- Force: Officers threatened individuals with the use of force.

Allegation B- Force: Officers used physical force against individuals.

§ 87(2)(b) stated that when officers responded to the fight outside the club, he saw an officer strike a tree with his asp, and saw other officers pushing unidentified civilians who were exiting the club but were not arrested (encl. C1-C4, D1- D12). § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** and **Allegation B** be closed as **Victim Unidentified**.

Allegation C- Discourtesy: Sgt. Kenneth Monahan spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Monahan approached his car and shouted, “Get this car the fuck out of here.” Sgt. Monahan (encl. H1-H5) and all of the officers interviewed (encl. F1-F13; G1-G6; J1-J5; I1-I7; K1-K4) denied making or witnessing the discourteous statement.

§ 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D- Abuse of Authority: An officer damaged § 87(2)(b) **property.**

As noted in the Explanation of Subject Officer Identification section, the investigation could not identify the subject of this allegation, or if an officer was even responsible for this damage. Therefore, it is recommended that **Allegation D** be closed as **Officer(s) Unidentified**.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____